

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Vredenburg	Team: Team # 5	CCRB Case #: 200610588	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/22/2006 10:50 PM	Location of Incident: Intersection of Vermont Street and Sunnyside Avenue and the 75th Precinct stationhouse	Precinct: 75	18 Mo. SOL 12/22/2007	EO SOL 12/22/2007	
Date/Time CV Reported Fri, 08/11/2006 2:45 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 08/11/2006 2:45 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Caputo	27878	935156	075 PCT
2. POM Javier Munoz	10519	935373	075 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Joseph Albert	00350	905669	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Javier Munoz	Discourtesy: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	
B.POM Jason Caputo	Discourtesy: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Jason Caputo spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	
C.POM Javier Munoz	Force: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz used pepper spray against § 87(2)(b)	
D.POM Jason Caputo	Force: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Jason Caputo used pepper spray against § 87(2)(b)	
E.POM Jason Caputo	Force: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Jason Caputo used physical force against § 87(2)(b)	
F.POM Javier Munoz	Force: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz used physical force against § 87(2)(b)	
G. An officer	Discourtesy: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
H.POM Jason Caputo	Abuse: At the 75th Precinct stationhouse, PO Jason Caputo refused to provide his name and shield number to § 87(2)(b)	

Synopsis

§ 87(2)(b) and § 87(2)(b) filed a complaint in person with the CCRB on August 11, 2006 (encl. 7a-b). § 87(2)(b) and § 87(2)(b)'s complaint concerned the following events: on June 22, 2006, Officer Jason Caputo and Officer Javier Munoz responded to a report of an assault on Vermont Street between Sunnyside Avenue and Highland Boulevard, in Brooklyn. When the officers arrived at the scene they both said to § 87(2)(b) "Shut the fuck up, shut the fuck up, back up against the wall" (allegations A and B). Officer Caputo then ordered § 87(2)(b) to "back up against the fucking Jeep" and both officers told her to "shut the fuck up" (allegations A and B). Officer Caputo and Officer Munoz then pepper sprayed § 87(2)(b) (allegations C and D) and § 87(2)(b) was then "thrown" to the ground and handcuffed by officer Caputo and Officer Munoz (allegations E and F). While § 87(2)(b) was crying and being treated by § 87(2)(b) an unidentified officer told her, "Shut the fuck up, it's not going to do you any good" (allegation G).

§ 87(2)(b) was then arrested and § 87(2)(b) went to see her at the 75th Precinct stationhouse, where he asked Officer Caputo for his name and shield number, but Officer Caputo provided neither his name nor his shield number (allegation H).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) and § 87(2)(b) who parented a daughter together, filed a complaint in person with the CCRB at 2:45 PM on August 11, 2006 (encl. 7a-b), at which time they were both interviewed at the CCRB (encl. 10a-f and 12a-e) and § 87(2)(b) filled out a CCRB Walk-In Form (11a-b). § 87(2)(b) also made statements about her interaction with Officer Jason Caputo and Officer Javier Munoz in the course of receiving medical treatment (9a-j). § 87(2)(b) is an unemployed § 87(2)(b) old black female and § 87(2)(b) is a § 87(2)(b) year old black male § 87(2)(b). In explaining why they did not file the complaint at a sooner date, § 87(2)(b) stated that both he and § 87(2)(b) had planned to file a complaint directly following the incident, but they did not do so because § 87(2)(b)'s first lawyer did not advise her to file a complaint. § 87(2)(b) now has another lawyer, whose name neither § 87(2)(b) nor § 87(2)(b) provided, who advised § 87(2)(b) to file a complaint concerning the incident. § 87(2)(g)

At about 10:50 PM, on June 22, 2006, § 87(2)(b) and § 87(2)(b) were engaged in an argument near a SUV on Vermont Street between Sunnyside Avenue and Highland Boulevard, in Brooklyn. Two police officers, later identified by the undersigned investigator as Officer Jason Caputo and Officer Javier Munoz, arrived at the scene in a patrol car, approached § 87(2)(b) and § 87(2)(b) and, according to § 87(2)(b) said to § 87(2)(b) "Shut the fuck up, shut the fuck up, back against the wall." § 87(2)(b) stated that Officer Caputo and Officer Munoz then turned towards § 87(2)(b) and told her, "Shut the fuck up, shut the fuck." § 87(2)(b) stated she was ordered by Officer Caputo to "back up against the fucking car" near which she was positioned and she complied with this command. § 87(2)(b) was facing the SUV with her arms at her side and turned her head towards Officer Caputo and Officer Munoz, and asked them, "What did I do? Aren't you guys going to ask any questions before you make any arrests?" According to both § 87(2)(b) and § 87(2)(b) Officer Caputo and Officer Munoz pepper sprayed § 87(2)(b) directing the spray "all over" § 87(2)(b)'s body. § 87(2)(b) stated that she was then "thrown" to the ground by Officer Caputo, Officer Munoz, and one other unidentified officer. § 87(2)(b) stated that an unidentified officer then "stood" on § 87(2)(b)'s back as Officer Caputo and Officer Munoz handcuffed her. § 87(2)(b) suffered bruises on her legs and a cut on her right big toe during the process of being handcuffed (encl. 27a-z). § 87(2)(b) stated that she asked an unidentified police officer why her handcuffs were on so tight and the officer replied, "Shut the fuck up." After § 87(2)(b) was handcuffed, an EMT, later identified as § 87(2)(b) washed the pepper spray from her face. While § 87(2)(b) was being treated for the pepper spray she was "screaming" due to the pain to her eyes, and she stated that an

unidentified police officer said to her, “Shut the fuck up. It’s not going to do you any good.” § 87(2)(b) stated that while he was in the ambulance with her at the scene of the incident, Officer Caputo discouraged her from going to the hospital in order to receive medical treatment by informing her that she would spend numerous days in jail if she did so.

§ 87(2)(b) was taken directly to § 87(2)(b) and was accompanied by Officer Caputo, who was relieved by another officer at the hospital. After receiving medical treatment for the cut on her toe, and the pepper spray on her face, she was given pain relief pills (encl. 27a-z) and § 87(2)(b) was taken to the 75th Precinct stationhouse. § 87(2)(b) was told that she was being arrested for assaulting a police officer. § 87(2)(b) who was not charged with any crime, stated that he went to the 75th Precinct stationhouse, where he saw Officer Caputo and asked him for his name and shield number. Officer Caputo did not provide his name and shield number, however. § 87(2)(b) could not read the name and shield number on Officer Caputo’s badge because Officer Caputo was moving while he discussed the incident with § 87(2)(b). § 87(2)(b) stated that Officer Caputo heard the request for his name and shield number, but he “tried to digress” to other subjects.

After her release, § 87(2)(b) returned to § 87(2)(b) (encl. 27a-z), due to the abrasions she received during the incident and back pain she was feeling since the incident. § 87(2)(b) received pain medication and a x-ray.

Results of Investigation

Civilian Statements

An anonymous male called 911 (encl. 8a) at 10:48 PM on June 22, 2006, and reported seeing a male hit a female on Sunnyside Avenue and Vermont Street under a bridge. The female and male were positioned near a “Jeep” and the female was holding her chest. § 87(2)(g)

§ 87(2)§ 87(2)(b) a § 87(2)(b) year old black male EMT § 87(2)(b), was interviewed at the CCRB on October 2, 2006 (encl. 14a-f) and filled out medical documents concerning the medical treatment he provided § 87(2)(b) (encl. 13a-c). § 87(2)(b)

At approximately § 87(2)(b), § 87(2)(b) and § 87(2)(b) whose first name § 87(2)(b) did not know, responded to a call for an assault on Vermont Street in between Sunnyside Avenue and Highland Boulevard and arrived before Officer Caputo and Officer Munoz. § 87(2)(b) was the EMS technician on the scene. When Officer Caputo and Officer Munoz arrived, § 87(2)(b) exited the ambulance and stood about “fifteen to twenty feet” from the interaction involving Officer Caputo, Officer Munoz, § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that Officer Caputo and Officer Munoz both told § 87(2)(b) to, “Step up against the wall.” Officer Munoz approached § 87(2)(b) who was positioned with her head resting in her arms as she was leaning on the hood of a nearby SUV, and asked her, “Are you alright? Are you OK?” § 87(2)(b) did not reply and Officer Munoz moved closer to her, lightly touched her arm, and again asked her, “Are you alright?” At that point § 87(2)(b) turned towards Officer Munoz and “swung” her arm at him. Officer Munoz avoided § 87(2)(b)’s arm and again asked her, “Are you alright?” § 87(2)(b) then swung both of her arms at Officer Munoz and “started cursing” at him. § 87(2)(b) “probably” made physical contact with Officer Munoz, but § 87(2)(b) was not sure. Officer Munoz responded by pepper spraying § 87(2)(b) “for a fraction of a second.” § 87(2)(b) then “went” to her knees unassisted and Officer Caputo and Officer Munoz both handcuffed § 87(2)(b) while she was on her knees. § 87(2)(b) resisted being handcuffed by moving her arms away from the officers, but Officer Caputo and Officer Munoz were able to quickly handcuff her. § 87(2)(b) then began to “flush” § 87(2)(b)’s eyes of the pepper spray and took her inside of the ambulance. At no point was § 87(2)(b) positioned face down and on the ground and neither Officer Caputo nor Officer Munoz applied a foot to § 87(2)(b)’s back.

§ 87(2)(b) was “angry” while she was receiving medical treatment and threatened to sue Officer Caputo and Officer Munoz and “make a report.” § 87(2)(b) could hear Officer Caputo, Officer Munoz, § 87(2)(b) and § 87(2)(b) speaking, and at no point did he hear any police officer use a curse word.

After § 87(2)(b) had been handcuffed and while she was in the ambulance, § 87(2)(b) noticed that more police officers had arrived at the scene, but only Officer Munoz and Officer Caputo interacted with § 87(2)(b). Judging from § 87(2)(b) years of experience as an EMT in New York City, § 87(2)(b) stated that Officer Caputo and Officer Munoz acted appropriately.

§ 87(2)(b) spoke with § 87(2)(b) when § 87(2)(b) was in the ambulance and was told that before EMS and the police arrived at the scene, § 87(2)(b) was barefoot and chasing § 87(2)(b) on the street. She fell and suffered cuts to her legs. § 87(2)(b) remembered § 87(2)(b) having a “bruise” on one of her feet.

§ 87(2)(b) who was driving the ambulance in which § 87(2)(b) was § 87(2)(b) § 87(2)(g)

Police Officer Interviews

Officer Jason Caputo and Officer Javier Munoz of the 75th Precinct were interviewed at the CCRB on September 8, 2006 (encl. 21a-c) and September 15, 2006 (encl. 26a-c), respectively. Officer Caputo is a 5’7”, 170 pound, brown-eyed, white male with brown hair. Officer Munoz is a 5’7”, 170 pound, brown-eyed, Hispanic male with brown hair. In terms of differentiating the appearances of Officer Caputo and Officer Munoz, Officer Munoz’s skin tone is darker than that of Officer Caputo. On June 22, 2006, Officer Caputo and Officer Munoz worked from 3:00 PM to 11:35 PM, were dressed in uniform, and assigned to patrol car § 87(2)(e), § 87(2)(f) in sector A.

The memobooks of Officer Caputo and Officer Munoz (encl. 15a-c and 22a-d) indicate that they responded to a 10-34, which refers to an assault in progress, at 10:55 PM. Officer Munoz’s memobook states that he processed the arrest of § 87(2)(b) at the 75th Precinct stationhouse at 11:45 PM. The Line-of-Duty Injury report (encl. 23a) and Aided Report Worksheet (encl. 25a), which were completed by Officer Munoz following the incident, indicate that he was scratched on the arm by § 87(2)(b). The Line-of-Duty Injury report also indicates that Officer Munoz was treated for the scratches on his arm at the 75th Precinct stationhouse at 12:30 AM by EMS. The Fire Arms Discharge/Assault Report (24a) filled out by Officer Munoz indicates that § 87(2)(b) was pepper sprayed. The Online Booking System Arrest Worksheet (16a) and Arrest Report #§ 87(2)(b) (encl. 17a-c), which were filled out by Officer Caputo, indicate that § 87(2)(b) scratched Officer Munoz on the arm and § 87(2)(b) was pepper sprayed. Officer Caputo completed the criminal court complaint (encl. 19a), which indicates that § 87(2)(b) attempted to cause injury to Officer Munoz. The Officer’s Witness Statement (encl. 20a-b), also completed by Officer Caputo, indicates that Officer Munoz was scratched on the arm by § 87(2)(b) after she knocked a flashlight out of his hands. § 87(2)(g)

On June 22, 2006, at 10:55 PM, Officer Caputo and Officer Munoz responded to a 10-34 with the understanding that a male was “hitting a female outside of an SUV underneath a highway overpass” on Vermont Street. As they exited the patrol car, Officer Munoz shined his flashlight on § 87(2)(b) who was nearer to the patrol car and had blood on his shirt and appeared “disheveled.” Officer Caputo and Officer Munoz told § 87(2)(b) to “step by the wall.” Officer Caputo questioned him about the blood on his shirt. Officer Munoz approached § 87(2)(b) who was positioned near the SUV and asked her “Mam, are you OK?” § 87(2)(b) “was just screaming” at Officer Munoz and “came at” Officer Munoz “swinging her arms.” § 87(2)(b) “slapped” Officer Munoz’s flashlight out of his left hand, scratching his right arm in the process. For a period of about “fifteen to thirty seconds,” Officer Caputo and Officer Munoz both attempted to “grab” § 87(2)(b)’s arms, but they were unable to do so. Officer Munoz then applied pepper spray to § 87(2)(b)’s eyes for a period of “a second to two seconds.” Officer Munoz was about “one to two feet” from § 87(2)(b) when he applied the pepper spray. § 87(2)(b) “went to her knees” unassisted after she was pepper sprayed. Officer Caputo did not discharge pepper spray. Officer Caputo stated that both he and Officer Munoz were both involved in grabbing § 87(2)(b)’s “swinging” arms and handcuffing her while she was kneeling on the ground and “screaming.” Officer Caputo stated that “it was not easy” to handcuff § 87(2)(b) while Officer Munoz stated that handcuffing § 87(2)(b) was not difficult and that he may have been the only officer involved in handcuffing § 87(2)(b). At no point was § 87(2)(b) positioned lying face down on the ground.

After handcuffing § 87(2)(b) Officer Munoz called Sergeant Joseph Albert to the scene to confirm the arrest. Neither Officer Munoz nor Officer Caputo could recall which officer was the driver for Sgt. Albert, but both stated that besides themselves, Sgt. Albert, and his driver, no other officer arrived at the scene. Sgt. Albert, Officer Caputo, and Officer Munoz spoke with § 87(2)(b) while § 87(2)(b) was in the ambulance. Officer Caputo stated that they “tried to explain” his and Officer Munoz’s actions to § 87(2)(b). The EMTs on the scene applied facial wash to § 87(2)(b) and Officer Caputo went with § 87(2)(b) to § 87(2)(b). An unidentified officer at § 87(2)(b) relieved Officer Caputo and after receiving medical treatment § 87(2)(b) was released to the custody of the police.

At 11:45 PM, Officer Munoz processed § 87(2)(b) at the 75th Precinct stationhouse. At 12:30 AM EMS arrived at the stationhouse and treated the “scratches” that Officer Munoz sustained on his right arm during his interaction with § 87(2)(b).

Officer Caputo noticed that § 87(2)(b) had “scratches and marks” on her legs, and Officer Munoz stated that § 87(2)(b) informed him that § 87(2)(b) sustained the scratches on her legs from falling while she was chasing § 87(2)(b). Officer Caputo stated that § 87(2)(b) did not inform him of how § 87(2)(b) sustained the scratches.

Officer Caputo and Officer Munoz both denied using any curse words during the incident and stated that they were not asked for their names or shield numbers at any time. Officer Caputo and Officer Munoz stated that they did not cover their badges, which were in open view. Officer Caputo went directly home after being relieved at § 87(2)(b).

§ 87(2)(b), § 87(2)(g)

Medical Records

The medical records of § 87(2)(b) (encl. 27a-z) indicate that following the incident on June 22, 2006, § 87(2)(b) stated that her eyes were “burning” and she received medical treatment at § 87(2)(b) that consisted of “irrigating” her eyes of pepper spray and cleaning abrasions. § 87(2)(b) did not complain of any other “trauma” besides the pain she felt in her eyes from the pepper spray. § 87(2)(b) returned to § 87(2)(b) and claimed she was “thrown” to the ground and “stepped on” by police officers “several days ago.” § 87(2)(b) complained of pain in her ribs and back. An x-ray of § 87(2)(b)’s back and ribs revealed a “questionable” fracture of “rib #7” and the x-ray was otherwise “unremarkable.” The records indicate § 87(2)(b) had abrasions on her legs and she was given pain relief pills.

Communications Documents

A SPRINT report (encl. 28a-b) and 911 call (encl. 8a) related to the incident were generated. The SPRINT indicates that at 10:45 PM, on Vermont Street near Sunnyside Avenue, an anonymous male caller reported that a female holding her chest and positioned near an SUV was hit by a male. At 10:49 PM, EMS arrived at the scene. At 11:16 PM, EMS reported that one patient was brought to § 87(2)(b) and at 11:25 PM Officer Caputo and Officer Munoz reported one arrest from the scene.

Police Documents

Line of Duty Injury Report #§ 87(2) (encl. 23a), aided report #§ 87(2) (encl. 25a), the Police Officer Witness’ Statement report (encl. 20a-b), the Online Booking System Arrest Worksheet (encl. 16a), criminal court complaint (encl. 19a), Fire Arms Discharge/Assault Report (encl. 24a), and UF-61 (encl. 31a-b) all include narratives § 87(2)(b)

§ 87(2)(b). The Police Officer Witness’ Statement report indicates that Officer Caputo and Officer Munoz responded to a 10-34 on Sunnyside Avenue and Vermont Street, where a female “became confrontational.” Officer Munoz asked her to “back up” but “she did not comply.” She swung her arms and “scratched” Officer Munoz on his right arm “three times.”

The Property Clerk's Invoice (encl. 31a) indicates that a photograph of Officer Munoz's injuries was vouchered as evidence in the arrest of § 87(2)(b). The photograph was the only item vouchered.

The prisoner pedigree card (encl. 30a), command log (encl. 29a-b), UF-61, and Online Booking System Arrest Worksheet all indicate that § 87(2)(b) was arrested for committing assault with intent to cause physical injury to an officer. The UF-61 and Online Booking System Arrest Worksheet indicate that § 87(2)(b) was also charged § 87(2)(a) 160.50.

The 75th Precinct command log for June 22, 2006 states that § 87(2)(b) was brought to the front desk of the 75th Precinct stationhouse at 11:35 PM.

The prisoner pedigree card also indicates that § 87(2)(b) suffered from being sprayed with pepper spray and she requested medical attention.

Disposition of Criminal Charges

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB Complaint History

Neither § 87(2)(b) nor § 87(2)(b) has filed any other complaints with the CCRB (encl. 5a and 6a).

Civilian Criminal Conviction History/Notice of Claim

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) of the Comptroller's Office confirmed that § 87(2)(b) has not filed a notice of claim in regards to the incident.

Officer CCRB History

Neither Officer Munoz nor Officer Caputo has been the subject of a substantiated CCRB allegation (encl. 4a and 3a). Officer Munoz and Officer Caputo have both been with the NYPD for two years.

Conclusions and Recommendations

Officer Identification

Officer Caputo was identified by the arrest report (encl. 16a) for § 87(2)(b). Officer Caputo stated he was involved in the incident. Officer Caputo stated that Officer Munoz was his partner on June 22, 2006, and Officer Munoz stated that he was involved in the incident.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that an officer whom she could not describe cursed at her while she was receiving medical treatment from § 87(2)(b). Officer Caputo and Officer Munoz stated that after handcuffing § 87(2)(b) they called Sergeant Joseph Albert to the scene, though could not recall the officer who was driving Sergeant Albert. Officer Caputo and Officer Munoz stated that besides themselves, Sergeant Albert, and Sergeant Albert's driver, no other police officers arrived at the scene at any point during the incident. § 87(2)(b) could not provide a description of the officer who allegedly cursed at her, so the officer could have been Officer Caputo, Officer Munoz, Sergeant Albert, or Sergeant Albert's unidentified driver. § 87(2)(g)

§ 87(2)(g)

Undisputed Facts

At about 10:50 PM on June 22, 2006, § 87(2)(b) and § 87(2)(b) were arguing on Vermont Street and Officer Caputo and Officer Munoz arrived at the scene. § 87(2)(b) was asked to back away from § 87(2)(b) towards the wall of a building along the sidewalk. § 87(2)(b) was pepper sprayed and was subsequently handcuffed after pulling her arms away from the officers. An EMT on the scene then treated § 87(2)(b) and she was put in the ambulance. § 87(2)(b) expressed his anger regarding the behavior of Officer Munoz and Officer Caputo to Sergeant Joseph Albert, who arrived after § 87(2)(b) had been handcuffed.

Accompanied by Officer Caputo, § 87(2)(b) was taken to § 87(2)(b). Officer Caputo was relieved while he was at § 87(2)(b) by an unidentified police officer. After receiving medical treatment for the pepper spray and abrasions on her legs, § 87(2)(b) was brought to the 75th Precinct stationhouse where she was processed and held § 87(2)(a) 160.50

Facts in Dispute

§ 87(2)(g)
§ 87(2)(b) stated that two officers arrived in the first patrol car at the scene while § 87(2)(b) stated that four officers were in the car. § 87(2)(b) and § 87(2)(b) claim that in approaching the scene Officer Munoz and Officer Caputo cursed at them. According to § 87(2)(b) and § 87(2)(b) neither officer asked them any questions about the prior interaction between § 87(2)(b) and § 87(2)(b) before physically interacting with § 87(2)(b). Also, they both claim that after § 87(2)(b) complied with the officers' orders to stand by the SUV, Officer Caputo and Officer Munoz pepper sprayed § 87(2)(b) for no apparent reason, as § 87(2)(b)'s hands were allegedly at her side and she was in no way aggressing or making physical contact with either officer. After § 87(2)(b) was pepper sprayed, § 87(2)(b) stated that she was "thrown" to the ground by one or more officers and was handcuffed while she was facing the ground and an officer was "standing" on her back. § 87(2)(b) stated that while § 87(2)(b) was not "thrown" to the ground, she was forced to the ground by three officers, one of whom "stood" on her back. § 87(2)(b) stated that an unidentified officer cursed at her for crying while an EMT was treating her at the scene.

The testimonies of § 87(2)(b) Officer Munoz, and Officer Caputo all state that neither Officer Munoz nor Officer Caputo cursed at § 87(2)(b) or § 87(2)(b) at any point during the incident. These testimonies then state that after having asked § 87(2)(b) to back away from § 87(2)(b) Officer Caputo asked § 87(2)(b) about his prior interaction with § 87(2)(b) and Officer Munoz asked § 87(2)(b) if she was OK. Initially, § 87(2)(b) did not respond to Officer Munoz, but she subsequently yelled at and aggressed Officer Munoz. Officer Caputo and Officer Munoz stated that Officer Munoz suffered swelling and redness from being scratched by § 87(2)(b). § 87(2)(b) stated that he did not observe either Officer Munoz or Officer Caputo attempt to use other means of restraining § 87(2)(b) before Officer Munoz used pepper spray. Officer Munoz and Officer Caputo, however, stated that they first attempted to grab § 87(2)(b)'s arms, but were unable to do so. § 87(2)(b) Officer Caputo, and Officer Munoz all stated that Officer Munoz was the only officer to use pepper spray and that he did so briefly. These testimonies also agree that, after being pepper sprayed, § 87(2)(b) "went" to her knees unassisted and was handcuffed while kneeling on the ground. § 87(2)(b) Officer Munoz, and Officer Caputo all stated that no other officers arrived at the scene until after § 87(2)(b) had been handcuffed and was receiving medical treatment from § 87(2)(b).

§ 87(2)(b) stated he saw Officer Caputo at the 75th Precinct stationhouse and asked him for his name and shield number, but Officer Caputo, while standing in uniform in front of § 87(2)(b)

somehow avoided providing § 87(2)(b) with his name and shield number, though Officer Caputo did not block his badge with his hand. Officer Caputo denied this allegation, stating that he went home after going to the hospital with § 87(2)(b) but at no point was he asked for his name and shield number and at no point did he in any way block the view of his badge. Officer Munoz also denied that he was asked for his name and shield number and stated that at no point did he block the view of his badge.

Credibility

§ 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g)

[REDACTED]

Allegation A: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

Allegation B: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Jason Caputo spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

Allegation D: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Caputo used pepper spray against § 87(2)(b)

Allegation G: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

[REDACTED]

§ 87(2)(g), § 87(2)(b)

Allegation C: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz used pepper spray against § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

§ 87(2)(b) NYPD Patrol Guide procedure 212-95 (encl. 1a-e), which states, "...pepper spray may be used when a member reasonably believes it is necessary to effect an arrest of a resisting suspect, for self-defense or defense of another from unlawful force...It will often reduce the potential for injuries to members and suspects that may result from physical restraint and it should be regarded as a possible alternative to such force and restraint, where practical." Officer Caputo, Officer Munoz, and § 87(2)(b) all testified that § 87(2)(b) physically aggressed Officer Munoz before he used pepper spray. The testimonies of Officer Munoz and Officer Caputo, as well as police documentation, state that, in aggressing Officer Munoz, § 87(2)(b) made physical contact with him and scratched his right arm. Officer Munoz testified that he used pepper spray for the safety of himself and Officer Caputo. § 87(2)(g)

Allegation E: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Javier Munoz used physical force against § 87(2)(b)

Allegation F: On Vermont Street between Sunnyside Avenue and Highland Boulevard in Brooklyn, PO Jason Caputo used physical force against § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

§ 87(2)(b) NYPD Patrol Guide procedure 203-11 (encl. 2a-b), which states, "...that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody." § 87(2)(g), § 87(2)(b)

Allegation H: At the 75th Precinct stationhouse, PO Jason Caputo refused to provide his name and shield number to § 87(2)(b)

Officer Caputo stated that he went directly home after being relieved at § 87(2)(b) while § 87(2)(b) claimed that following the incident he saw an officer fitting the description of Officer Caputo at the 75th Precinct stationhouse. § 87(2)(b) alleged that he asked Officer Caputo for his name and/or shield number, but Officer Caputo did not address § 87(2)(b)'s question in speaking with him. Also, Officer Caputo denied ever refusing to provide his name and shield number at any point.

§ 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: